



CHAPTER lxii.

An Act to confirm certain Provisional Orders made by the Minister of Transport under the Tramways Act 1870 relating to Leicester Corporation Tramways and Rochdale Corporation Tramways. A.D. 1923.
[31st July 1923.]

WHEREAS the Minister of Transport has made the Provisional Orders set out in the schedule to this Act under the authority of the Tramways Act 1870: 33 & 34 Vict. c. 78.

And whereas a Provisional Order made by the Minister of Transport under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is requisite that the said Provisional Orders should be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Tramways Provisional Orders Act 1923. Short title.

2. The several Orders set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the dates of the same respectively shall be the date of the passing of this Act. Confirmation of Orders in schedule.

[Ch. lxii.] *Tramways Provisional* [13 & 14 GEO. 5.]
Orders Act, 1923.

A.D. 1923.

SCHEDULE.

LIST OF ORDERS.

LEICESTER CORPORATION TRAMWAYS.—Order authorising the Corporation of Leicester to construct additional tramways in the city of Leicester and for other purposes.

ROCHDALE CORPORATION TRAMWAYS.—Order authorising the Mayor Aldermen and Burgesses of the Borough of Rochdale to construct an additional tramway in the said borough.

LEICESTER CORPORATION.

A.D. 1923.

Order authorising the Corporation of Leicester to construct additional Tramways in the City of Leicester and for other purposes.

Leicester Corporation.

1. This Order may be cited as the Leicester Corporation. Short title.
Tramways Order 1923.

2. The provisions of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order.

Incorporation of
Tramways
Act 1870.

3. The several words terms and expressions to which by the Tramways Act 1870 meanings are assigned have in this Order (except so far as is otherwise expressly provided by this Order or unless the context otherwise requires) the same respective meanings.

Interpretation.

And in this Order—

The expressions “the Act of 1902” and “the Act of 1913” mean respectively the Leicester Corporation Act 1902 and the Leicester Corporation Act 1913;

The expression “the tramways” means the tramways and works by this Order authorised;

The expression “the Corporation tramways” has the meaning assigned thereto by the Act of 1913;

The expression “the tramway undertaking” means the tramway undertaking of the Promoters for the time being authorised;

The expression “the city” means the city of Leicester;

The expression “mechanical power” includes electrical and every other motive power not being animal power and the word “engine” includes motor.

4. The mayor aldermen and citizens of the city acting by the council shall be the Promoters for the purposes of this Order and are in this Order referred to as “the Promoters.”

Promoters.

5. The Promoters may subject to the provisions of this Order construct and maintain in accordance with the plans and sections deposited at the office of the Ministry of Transport for the purposes of this Order (which plans and sections are in this Order referred to respectively as “the deposited plans” and “the deposited sections”) the tramways hereinafter described with all necessary and proper rails plates sleepers channels tubes cables mains wires and electric lines junctions turntables turnouts crossings passing-places poles posts conduits section boxes

Construction of
tramways.

[Ch. lxii.] *Tramways Provisional* [13 & 14 GEO. 5.]
Orders Act, 1923.

A.D. 1923. tramway plant machinery apparatus appliances works and con-
— veniences connected therewith or as may be necessary or proper
Leicester therefor and for connecting and using the same with and as part
Corporation. of the Corporation tramways :

Provided that nothing in this Order or in the Tramways Act 1870 shall extend to or authorise any interference with any electric lines or works of any undertakers under the Electricity (Supply) Acts 1882 to 1922 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

The tramways will be wholly situated within the city and are as follows :—

Tramway No. 1 A tramway (double line 1 mile 1 furlong 0·8 chain or thereabouts in length) commencing in Woodgate by a junction with the existing tramway therein at a point 1·41 chains or thereabouts west of the western side of Balfour Street passing thence along Woodgate and Blackbird Road into and terminating in Abbey Park Road by a junction with the existing tramway therein at a point 1·06 chains or thereabouts north-west of a point opposite the centre of the main entrance to Abbey Park ;

Tramway No. 1A A junction tramway (double line 3·07 chains or thereabouts in length) commencing in Woodgate by a junction with the existing tramway therein at a point 1·1 chains or thereabouts east of the eastern side of Balfour Street and terminating in Blackbird Road by a junction with the intended Tramway No. 1 at a point 2½ chains or thereabouts north of the north-western corner of Balfour Street ;

Tramway No. 1B A junction tramway (double line 0·82 chain or thereabouts in length) commencing in Abbey Park Road by a junction with the intended Tramway No. 1 at a point 2·4 chains or thereabouts north-west of a point opposite the centre of the main entrance to Abbey Park and terminating in Abbey Park Road at the entrance to the main car depôt of the Promoters :

Provided that so much of the said Tramway No. 1 as will be situate under the railway of the London and North Eastern Railway Company shall not be constructed unless or until the bridge carrying that railway over Blackbird Road has been lengthened or otherwise altered by agreement with the said company to the extent necessary for the construction of the said portion of tramway in the line and according to the levels shown on the deposited plans and sections.

Gauge of
tramways.

6. The tramways shall be constructed on a gauge of four feet eight and a half inches and the Promoters shall not run thereon carriages or trucks adapted for use upon railways.

[13 & 14 GEO. 5.] *Tramways Provisional* [Ch. lxii.]
Orders Act, 1923.

7—(1) Where any part of the tramways is shown on the deposited plans as intended to be constructed on a track separate from the carriageway the provisions of sections 25 and 62 of the Tramways Act 1870 shall not apply thereto.

A.D. 1923.

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Leicester Corporation.

(2) The Promoters shall provide adequate ways across such separate tracks.

Separate track not to form part of carriageway.

(3) Nothing in this section contained shall prejudice alter or affect any of the rights and powers of the Postmaster-General under the Telegraph Acts 1863 to 1922 and under section 15 (Use of tramway posts by Postmaster-General) of the Act of 1913 and each such separate track shall be deemed to be a "street" or "public road" for the purposes of the said Acts and section respectively.

8. Subject to the provisions of this Order the tramways shall for all purposes form part of the Corporation tramways and of the tramway undertaking.

Tramways to form part of tramway undertaking.

9.—(1) The Promoters may subject to the provisions of this Order with the consent of the Minister of Transport make maintain alter and remove such crossovers passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Order or any Act or Order authorising the Corporation tramways or any of them as they find necessary or convenient for the efficient working of the Corporation tramways or for providing access to any warehouses stables or carriagehouses or works of the Promoters.

Power to make additional crossovers and to double tramway lines.

(2) Notwithstanding anything shown on the deposited plans or on the plans deposited for the purposes of any such Act or Order as aforesaid the Promoters may with the consent of the Minister of Transport lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of the Corporation tramways and may with the like consent at any time alter the position in the road of any of the Corporation tramways or any part thereof.

(3) Provided that if in the construction of any works under this section any rail is intended to be laid nearer to the footpath than previously authorised in such a manner that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Promoters shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not except with the consent of the Minister of Transport be so laid if the owners or occupiers of one-third of such houses

[Ch. Ixii.] *Tramways Provisional* [13 & 14 GEO. 5.]
Orders Act, 1923.

A.D. 1923. shops or warehouses by writing under their hands addressed
 — and delivered to the Promoters within three weeks after receiving
Leicester the notice from the Promoters express their objection thereto.
Corporation.

(4) Sections 17 (Power to make additional crossings) and
 20 (Power to lay down double or interlacing lines in place of
 single lines and vice versa) of the Act of 1902 are hereby
 repealed.

Application
 of certain
 provisions
 of Act of
 1902 and
 Act of 1913.

10. The following sections of the Act of 1902 and of the Act
 of 1913 shall extend and apply to the tramways and to the Pro-
 moters in respect thereof (that is to say) :—

Act of 1902 :—

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| Section 15 | Penalty for not maintaining rails and roads. |
| Section 19 | Temporary tramway to be made where neces-
sary. |
| Section 21 | Corporation may reduce width of footway for
constructing tramway. |
| Section 24 | Provisions as to motive power. |
| Section 25 | Special provisions as to use of electrical
power. |
| Section 27 | Power to attach brackets &c. to buildings. |
| Section 28 | Corporation may take up lines for purposes
of constructing others. |
| Section 32 | Alteration of telegraph lines of Postmaster-
General. |
| Section 39 | Traffic upon tramways. |
| Section 40 | Rates for passengers. |
| Section 41 | Corporation not bound to carry goods. |
| Section 42 | Provisions as to carriage of animals goods &c.
in separate carriages. |
| Section 43 | Animals and goods. |
| Section 45 | Payment of tolls. |
| Section 47 | As to fares on Sundays or holidays. |
| Section 48 | Cheap fares for labouring classes. |
| Section 49 | Periodical revision of rates and charges. |
| Section 50 | Byelaws. |
| Section 51 | Amendment of Tramways Act 1870 as to
byelaws by Corporation. |
| Section 52 | Byelaws as to street traffic. |
| Section 53 | Orders &c. of Board of Trade. |
| Section 54 | Recovery of penalties. |

Act of 1913 :—

- | | |
|------------|--|
| Section 6 | Special provision as to construction of certain
tramways. |
| Section 8 | Inspection by Board of Trade. |
| Section 9 | Tramways to be kept on level of surface of
road. |
| Section 10 | As to rails of tramways. |

[13 & 14 GEO. 5.] *Tramways Provisional* [Ch. lxii.]
Orders Act, 1923.

Section 11 Further provisions as to construction of tramways. A.D. 1923.

Section 12 Passing-places to be constructed where less than a certain width left between footway and tramway. *Leicester Corporation.*

Section 14 As to erection of posts &c. on carriageway.

Section 15 Use of tramway posts by Postmaster-General :

Provided that in construing the said sections for the purposes of such application—

- (a) References to the Minister of Transport shall be substituted for references to the Board of Trade ;
- (b) References to “ the tramways ” shall be construed as references to the tramways authorised by this Order ;
- (c) References to “ this Act ” shall be construed as references to this Order ;
- (d) References to “ the Corporation ” shall be construed as references to the Promoters :

Provided also that the said section 9 of the Act of 1913 shall not apply to any such part of the tramways as is referred to in the section of this Order of which the marginal note is “ Separate track not to form part of carriageway.”

11. The tramways shall be completed within five years from the confirmation of this Order and on the expiration of that period the powers by this Order granted to the Promoters for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed. Period for completion of tramways.

12. For the protection of the London and North Eastern Railway Company (in this section referred to as “ the company ”) the following provisions shall unless otherwise agreed in writing between the Promoters and the company have effect (that is to say) :— For protection of London and North Eastern Railway Company.

- (1) In constructing any tramway under any such extension of the existing bridge carrying the railway of the company over Blackbird Road as is referred to in the proviso to the section of this Order of which the marginal note is “ Construction of tramways ” (which extension is in this section referred to as “ the bridge ” and which existing bridge is in this section referred to as “ the said existing bridge ”) the Promoters shall not in any way alter or interfere with or cause any damage to the structure of the bridge or the said existing bridge and before commencing any such work the Promoters shall give at least twenty-eight days’ notice in writing to the engineer of the company (in this section referred to as “ the engineer ”) of

[Ch. Ixii.] *Tramways Provisional* [13 & 14 GEO. 5.]
Orders Act, 1923.

A.D. 1923.

—
Leicester
Corporation.

their intention to execute such works and such notice shall be accompanied by sufficient information as to the nature of the proposed works;

- (2) The Promoters shall repay to the company any extra cost of maintaining or painting the bridge and the said existing bridge which may be rendered necessary by reason of the construction working or user of the said tramway;
- (3) In the event of the said tramway being worked by electricity on the overhead wire system no stays posts wires brackets or other apparatus shall without the previous consent in writing of the company be attached to either of the said bridges or other work of the company but such consent shall not be unreasonably withheld;
- (4) If the position of any tramway works under or near to the bridge or the said existing bridge necessitates in the opinion of the engineer that the electric telephonic or signal wires or apparatus of the company shall be altered the company may execute any works reasonably necessary for such alteration and the expense as certified by the engineer of executing such works shall be paid by the Promoters to the company on demand;
- (5) If the company at any time require that for the purpose of widening strengthening reconstructing or repairing the bridge or the said existing bridge or either of them or for the purpose of lifting or supporting the same the working or user of any part of the tramway under such bridges shall be wholly or in part stopped or delayed or that such part of the tramway be wholly or in part temporarily taken up or removed and if the company accordingly give to the Promoters fourteen days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or removal then the working or user of such part of the tramway shall be stopped or delayed or such part of the tramway shall be taken up or removed as stated in such notice by and at the reasonable expense of the Promoters but no such working or user shall be stopped or delayed for a longer period than may be necessary for effecting such purpose as aforesaid and such part of the tramway shall be restored with all possible despatch and in such case the company shall not be liable to pay compensation in respect of such stoppage delay taking up or removal as aforesaid. Provided that if the tramway is constructed as a double line the company shall not be at liberty to require more than one line of rails to be stopped at a time or if the tramway is constructed as a single line the company shall give the Promoters all reasonable

[13 & 14 GEO. 5.] *Tramways Provisional* [Ch. lxii.]
Orders Act, 1923.

facilities for the construction and user of a temporary line to be laid under such bridge for maintaining the tramway service;

A.D. 1923.

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Leicester Corporation.

- (6) The Promoters shall from time to time pay to the company any additional expense which the company may incur in effecting such strengthening reconstructing repairing lifting or supporting as is mentioned in the last preceding subsection or in the maintenance of the said bridges or other work of the company by reason of the existence or user of the tramway or any of the works or apparatus connected therewith;
- (7) In the event of the tramways being worked by electricity on the overhead wire system the Promoters shall (if and when the company shall require to widen reconstruct alter repair or paint the bridge or the said existing bridge under which any electric wire of the Promoters has been placed) in order to ensure the safety of the workmen employed in such widening reconstruction alteration repairing or painting cut off the electric current from the trolley wires under such bridges at such times as shall be reasonably required by the engineer unless the Promoters shall have previously adopted some other means of protection to workmen which shall have been approved by the engineer;
- (8) If any difference shall arise between the Promoters and the company under the provisions of this section such difference shall be referred to and determined by an arbitrator to be agreed upon between them or failing such agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

13.—(1) In the event of any of the Corporation tramways being worked by electricity the following provisions shall have effect :—

For protection of
Post Office
telegraph
lines.

- (a) The Promoters shall construct their electric lines and other works of all descriptions and shall work the tramway undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the tramway undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference

[Ch. lxi.] *Tramways Provisional* [13 & 14 GEO. 5.]
Orders Act, 1923.

A.D. 1923.

—
Leicester
Corporation.

- which arises between the Postmaster-General and the Promoters as to compliance with this subsection shall be determined by arbitration;
- (b) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the tramway undertaking the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection;
- (c) Before any electric line is laid down or any act or work for working the Corporation tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work Any difference which arises between the Postmaster-General and the Promoters as to any requirement so made shall be determined by arbitration;
- (d) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Promoters is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Promoters' works or to the working of the tramway undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Promoters enter any of the Promoters' works for the purpose of inspecting the Promoters' plant and the working of the same and the Promoters shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Promoters pursuant to the Ministry of Transport regulations;
- (e) In the event of any contravention of or wilful non-compliance with the section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding

[13 & 14 GEO. 5.] *Tramways Provisional* [Ch. lxii.]
Orders Act, 1923.

twenty pounds and to a further fine not exceeding ten pounds for every day during which such contravention or non-compliance continues after conviction thereof or if the telegraphic communication is wilfully interrupted to a fine not exceeding fifty pounds and to a further fine not exceeding fifty pounds for every day on which such interruption continues after conviction thereof;

A.D. 1923.

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Leicester
Corporation.

- (f) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraphic office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice;
- (g) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work;
- (h) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order;
- (i) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882;
- (j) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Minister of Transport on the application of either party whose decision shall be final and sections 30 to 32 of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act;
- (k) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid;
- (l) In this section the expression "the Promoters" includes their lessees and any person owning working or running carriages on any of the Corporation tramways.

[Ch. lxii.] *Tramways Provisional* [13 & 14 GEO. 5.]
Orders Act, 1923.

A.D. 1923.

(2) Section 33 (For protection of post office telegraph lines) of the Act of 1902 is hereby repealed.

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Leicester Corporation.

Regula-
tions by
Promoters.

14. The regulations authorised by the Tramways Act 1870 to be made by the Promoters of any tramway and their lessees may with respect to the Corporation tramways be made by the Promoters alone.

As to defi-
nition of
local rate.

15. The term "local rate" where used in section twenty of the Tramways Act 1870 as incorporated with this Order shall be deemed to mean the district fund and the general district rate of the city and the Promoters may include in any mortgage of the local rate made under the said section all the revenues of the Promoters from time to time arising from the lands undertakings and other property for the time being of the Promoters and the rates and moneys leviable by or on the precept of the Promoters.

Certain
works to be
deemed
purposes of
this Order.

16. The lengthening or other alteration for the purposes of or in connection with the construction of Tramway No. 1 by this Order authorised of the bridge carrying the London and North Eastern Railway over Blackbird Road and the widening of streets and roads in connection with such lengthening or alteration or the construction of the said tramway shall for the purposes of section 20 of the Tramways Act 1870 as incorporated with this Order be deemed to be purposes of this Order and shall be deemed to be included in the expression "tramway purposes" where used in section 108 (Application of revenue) of the Act of 1902 :

Provided that nothing in this section shall be construed as empowering the Promoters to lengthen or otherwise alter or to interfere in any way with the said bridge otherwise than by agreement with the London and North Eastern Railway Company Provided also that if the lengthening or other alteration of the said bridge or the widening of streets or roads in connection with such lengthening or alteration shall involve an alteration of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General the enactments contained in section 7 of that Act shall apply to any such last mentioned alteration.

ROCHDALE CORPORATION.

A.D. 1923.

Order authorising the Mayor Aldermen and Burgesses of the borough of Rochdale to construct an additional tramway in the said borough. *Rochdale Corporation.*

1. This Order may be cited as the Rochdale Corporation Short title.
Tramways Order 1923.

2. The provisions of the Tramways Act 1870 are hereby Incorporated with this Order except where the same are Incorporation of Act.
inconsistent with or expressly varied by this Order.

3. The several words terms and expressions to which by the Interpretation.
Tramways Act 1870 meanings are assigned have in this Order
the same respective meanings :

Provided that in this Order—

The expression “ the borough ” means the borough of Rochdale ;

The expression “ the tramway ” means the tramway and works by this Order authorised or (as the case may be) any part thereof ;

The expression “ the Corporation tramways ” includes the tramway and any tramways for the time being belonging or demised to or worked by the Corporation or over which they have running powers.

4. The mayor aldermen and burgesses of the borough acting Promoters.
by the council shall be the Promoters for the purposes of this Order and are in this Order referred to as “ the Promoters.”

5. Subject to the provisions of this Order the Promoters Construction of tramway.
may construct and maintain in accordance with the plans and sections deposited at the office of the Ministry of Transport for the purposes of this Order the tramway hereinafter described with all proper rails plates sleepers channels (including in that expression channels passages and tubes for ropes cables and electric lines) junctions turntables turnouts crossovers and passing-places carriages works mechanical appliances waiting rooms sheds shelters plant and conveniences connected therewith as may be necessary or proper therefor and for connecting and using the same with the Corporation tramways and may take up remove and

[Ch. lxii.] *Tramways Provisional* [13 & 14 GEO. 5.]
Orders Act, 1923.

A.D. 1923. alter the position of any existing tramway and the rails and other
— works connected therewith which may be necessary for the purposes
Rochdale of constructing the tramway Provided that nothing in this Order
Corporation. shall extend to or authorise any interference with any works of
any undertakers within the meaning of the Electricity (Supply)
Acts 1882 to 1922 and to which the provisions of section 15 of the
Electric Lighting Act 1882 apply except in accordance with and
subject to the provisions of that section.

The tramway authorised by this Order will be situate in the
borough and is—

A tramway commencing in Lower Tweedale Street by a
junction with the existing tramway of the Promoters at
a point 18 yards or thereabouts west of Maclure Road
passing thence into and along Maclure Road Richard
Street and Drake Street and terminating in Drake Street
by a junction with the existing tramway of the Promoters
at a point 23 yards or thereabouts north-east of Richard
Street :

The tramway is 1 furlong 5·32 chains in length of which
1 furlong 3·65 chains is double line and 1·67 chains
interlacing line.

The tramway is a double line except between a point in
Richard Street opposite the eastern corner of the Woolpack
Inn and the existing tramway in Drake Street where it
is an interlacing line.

Tramway to
form part of
Corporation
tramways.

6. Subject to the provisions of this Order the tramway
shall for all purposes form part of the Corporation tramways
and the Promoters and their lessees and licensees may in respect
of the tramway exercise and enjoy all the like powers rights
privileges and authorities which they now may or are empowered
to exercise and enjoy and shall be subject and liable to the like
penalties conditions restrictions and stipulations as they are
subject and liable to with respect to the Corporation tramways
and may demand take and recover in respect of the tramway or
any part or parts thereof the like tolls rates and charges for the
use thereof and for the conveyance thereon of traffic of all kinds
and for the use of carriages placed and run thereon by them as
they are authorised to demand and take in respect of the tram-
ways authorised by the Rochdale Corporation Act 1900 and the
Rochdale Corporation Act 1908 Provided that nothing in this
Order shall authorise the attachment of brackets wires and appa-
ratus to any house or building without the consent of the owner and
occupier thereof or the erection of any post on the carriageway
without the consent of the Minister of Transport and subject to
such conditions as to removal as he may impose.

[13 & 14 GEO. 5.] *Tramways Provisional Orders Act, 1923.* [Ch. lxii.] A.D. 1923.

Rochdale Corporation.

7. Section 19 (Use of tramway posts by Postmaster-General) of the Rochdale Corporation Act 1908 shall extend and apply to any tramways owned by the Promoters.

Use of tramway posts by Postmaster-General.

8. Nothing in this Order contained shall exempt the Promoters or any person using the tramway or the tramway from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates and charges authorised by this Order.

Saving for general Tramway Acts.

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